

2. **Words precatory.**—A frequent case of implied trust arises where a testator employs words *precatory*, or *rec-*

Marsh, 126 Mass. 213; nor will a trust be implied if it would be repugnant to other parts of the instrument; *Brunson v. Hunter*, 2 Hill. Ch. 490; *precatory* words must give way to positive provisions; *Church v. Disbrow*, 52 Pa. St. 219; if power is given to be exercised or not at discretion, no trust results; *Lines v. Darden*, 5 Fla. 51; only such words as may be treated as imperative will raise a trust; *Harrison v. Harrison*, 2 Gratt. 1; 44 Am. Dec. 365; 2 Redf. Wills, 411; *Gilbert v. Chapin*, 19 Conn. 342; *Lucas v. Lockhart*, 10 Swedes & M. 466; 48 Am. Dec. 766; the earlier American cases favored making the words imply a trust, in order to carry out the intention of the party; *Ward v. Peloubet*, 2 Stockt. Ch. 305; *Little v. Bennett*, 5 Jones Eq. 156; *Harrison v. Harrison*, 2 Gratt. 1; but the later American cases, like the English, give only the natural meaning to the words, and the tendency is against converting a legatee into a trustee; *Van Amee v. Jackson*, 35 Vt. 173; *Rhett v. Mason*, 18 Gratt. 541; *Negroes v. Plummer*, 17 Md. 165; *Whipple v. Adams*, 1 Met. 445; *Van Dyne v. Van Dyne*, 1 McCart. 397; *Ellis v. Ellis*, 15 Ala. 296; *Davis v. Mailey*, 134 Mass. 588; *Howard v. Carusi*, 109 U. S. 733.

Maintenance.—There arises a similar question where the parent, or one standing in *loco parentis*, receives property with certain directions or suggestions regarding the maintenance of his family or dependents, viz.;—was it the intention to create a trust or merely to mention the motive of the gift? *Paisley's App.* 70 Pa. St. 158; the one holding for maintenance of children is entitled to any surplus, and not obliged to account for the application of the fund; *Smith v. Smith*, 11 Allen, 423; if such a one is unfit to handle the funds, the court can distribute it; *Chase v. Chase*, 2 Allen, 101; for case of his death, see *Bowditch v. Andrew*, 8 Allen, 339; *Andrews v. Bank*, 3 Allen, 313; the habits and ability of the *cestui que* trust are to be considered in determining the amount necessary for him; *Kilroy v. Wood*, 42 Hun, 636; sometimes alimony paid a wife may be deducted; *Ireland v. Ireland*, 84 N. Y. 321, reversing 18 Hun, 302. See also *Curtis v. Smith*, 6 Blatchf. 537; *Erisman v. Poor*, 47 Pa. St. 509; *Lucas v. Lucas*, 7 Rich. Eq. 180. Whether child's right to maintenance ceases when he becomes of age, see *Baker v. Red*, 4 Dana, 158; it depends largely upon the words as showing the testator's intention; *Sargent v. Bourne*, 6 Met. 32; if given for particular purpose, the fund cannot be reached by creditors through any process open to them; *Clute v. Bool*, 8 Paige, 83; *Bramhall v. Ferris*, 14 N. Y. 44; *Wells v. McCall*, 64 Pa. St. 207.

There is no implied trust where merely the motive for the gift is stated, as "to enable him to maintain the children"; *Bryan v. Howland*, 98 Ill. 625; *Burke v. Valentine*, 52 Barb. 412; *Burt v. Herron*, 66 Pa. St. 400; "having full confidence in sufficient and judicious provision"; *Sears v. Cunningham*, 122 Mass. 538; *Barrett v. Marsh*, 126 Mass. 213; or that she will divide the surplus justly; *Paisley's App.* 70 Pa. St. 158; *Willard's App.* 15 P. F. Smith, 265; "home and residence" does not include maintenance; *Kennedy's App.* 81 Pa. St. 163. Sometimes the conditions of a will necessarily raise such a trust to carry out intentions of the testator; *Fay v. Taft*, 12 Cush. 448; *Walker v. Whiting*, 23 Pick. 313; *Watson v. Mayrant*, 1 Rich. Ch. 449; *Sohier v. Trinity Church*, 109 Mass. 1.

Trusts are sometimes implied from the agreements of parties; *Pownal v. Taylor*, 10 Leigh, 183; *Currie v. White*, 45 N. Y. 822; *Pingree v. Coffin*, 12 Gray, 288; *Conway v. Kinsworthy*, 21 Ark. 9.